(iv) October 31, 1978—Final compliance with the requirements of Section 8-2:705 of the Air Quality Control Regulations of the District of Columbia.

(v) If a performance test is necessary for a determination as to whether compliance has been achieved, such a test must be completed by October 31, 1978. Ten days prior to the test, a notice must be given to the Administrator to afford him the opportunity to have an observer present.

(5) * * *

(iii) Any owner or operator subject to the compliance schedule in either paragraph (b) (2) or (3) of this section may submit to the Administrator, no later than 30 days after the effective date of this paragraph a proposed alternative compliance schedule. No such final compliance schedule may provide for final compliance after October 31, 1978. If promulgated by the Administrator, such schedule shall satisfy the requirement of this paragraph for the affected source.

[FR Doc. 78-18815 Filed 7-7-78; 8:45 am]

[4310-84]

Title 43—Public Lands: Interior

CHAPTER II—BUREAU OF LAND MANAGEMENT

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 5643; Colorado 9209]

COLORADO

Powersite Restoration No. 667; Partial Revocation of Powersite Reserve No. 435

AGENCY: Bureau of Land Management (Interior).

ACTION: Final rule.

SUMMARY: This order will partially revoke powersite reserve No. 435. It has been determined that these lands will not be developed for power purposes but will be restored to the operation of the public land laws.

EFFECTIVE DATE: August 5, 1978.

FOR FURTHER INFORMATION CONTACT:

Eldon G. Hayes, 202-343-8731.

By virtue of the authority contained in section 204 of the Federal Land Policy and Management Act of October 21, 1976, 90 Stat. 2751; 43 U.S.C. 1714, and pursuant to the Federal Power Commission (now the Federal Energy Regulatory Commission) in DA-494-Colorado, it is ordered as follows:

1. The Executive Order of April 21, 1914, creating powersite reserve No. 435, is hereby revoked so far as it affects the following described land:

SIXTH PRINCIPAL MERIDIAN

T. 10 N., R. 79 W.,
Sec. 6, lot 2;
Sec. 18, W½NE¼, NE¼NW¼, E½SE¼, NW¼SE¼;
Sec. 19, E½NE¼, NE¼SE¼;
Sec. 20, W½NW¼, E½SW¼, NW¼SW¼, W½SE¼.
T. 11 N., R. 79 W.,
Sec. 19, SE¼SE¼;
Sec. 30, NE¼NE¼;
Sec. 31, lot 4, SE¼SW¼, SW¼SE¼.
T. 10 N., R. 80 W.,
Sec. 1, SW¼NE¼;
Sec. 2, lot 4;
Sec. 3, E½SE¼;
Sec. 10, E½NE¼, NE¼SE¼, SW¼SE¼;
Sec. 14, W½SE¼;
Sec. 15, W½E½;
Sec. 22, W½E½;
Sec. 26, SW¼SW¼;
Sec. 27, W½NE¼, NE¼SW¼;
Sec. 35, NW¼NW¼.
T. 11 N., R. 80 W.,
Sec. 11, SE¼NE¼, W½W½, NE¼SE¼;
Sec. 14, W½NW¼, N½SE¼;
Sec. 23, SW¼NE¼, NE¼SW¼;
Sec. 26, SE¼NE¼, NE¼SE¼.
T. 12 N., R. 80 W.,
Sec. 22, lots 3 and 4, S½SW¼;
Sec. 27, SW¼NE¼, N½NW¼, SE¼NW¼, NE¼SW¼, NW¼SE¼, S½SE¼;
Sec. 34, NW¼NE¼.

The areas described aggregate 2,879.82 acres in Jackson County.

Of the land described above, the following 799.82 acres are privately owned:

SIXTH PRINCIPAL MERIDIAN

T. 10 N., R. 79 W.,
Sec. 6, lot 2.
T. 11 N., R. 79 W.,
Sec. 19, SE¼SE¼;
Sec. 31, lot 4, SE¼SW¼, SW¼SE¼.
T. 10 N., R. 80 W.,
Sec. 2, lot 4;
Sec. 3, E½SE¼;
Sec. 27, NE¼SW¼.
T. 12 N., R. 80 W.,
Sec. 22, lots 3 and 4, S½SW¼;
Sec. 27, SW¼NE¼, N½NW¼, SE¼NW¼, NE¼SW¼, NW¼SE¼;
Sec. 34, NW¼NE¼.

2. The State of Colorado has waived its right to select lands for highway rights-of-way or material sites as provided by the Federal Power Act of June 10, 1920, 16 U.S.C. 818.

3. At 10 a.m. on August 5, 1978, the above-described public lands shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on August 5, 1978, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

4. The public lands in this order have been and continue to be open to applications and offers under the mineral leasing laws and to the U.S. mining laws.

Inquiries concerning the lands should be addressed to the State Director, 700 Colorado State Bank Building, 1600 Broadway, Denver, Colo. 80202.

GUY R. MARTIN,
Assistant Secretary of the Interior.

JUNE 30, 1978.

[FR Doc. 78-18903 Filed 7-7-78; 8:45 am]

[6712-01]

Title 47—Telecommunication

CHAPTER I—FEDERAL COMMUNICATIONS COMMISSION

[RM-2466; FCC 78-409]

PART 1—PRACTICE AND PROCEDURE

Suggested Procedural Rule Revisions

AGENCY: Federal Communications Commission.

ACTION: Final rule.

SUMMARY: The FCC is amending its regulations relating to restrictions on ex parte communications in contested cable television proceedings and adopts target dates for actions in rulemaking proceedings. This action is in response to a petition for rulemaking and will serve to specify all existing restrictions in the regulations and will increase accountability for delay of action within the Commission.

EFFECTIVE DATE: July 3, 1978.

ADDRESS: Federal Communications Commission, Washington, D.C. 20554.

FOR FURTHER INFORMATION CONTACT:

Upton Guthery, Office of General Counsel, 202-632-6444.

In the matter of suggested procedural rule revisions; memorandum opinion and order.

Adopted: June 15, 1978.

Released: June 23, 1978.

By the Commission: Commissioner White absent; Commissioner Brown concurring and issuing a statement.

1. On October 18, 1974, Henry Geller filed a petition for rule making suggesting four changes in the Commission's procedures. Public notice of the filing of the petition was given on October 31, 1974. Comments supporting the petition were filed by the National Cable Television Association on November 25, 1974.

2. Petitioner first asks that the rules restricting ex parte communications be applied to contested cable television proceedings which have not been designated for hearing. This is a matter of amending the ex parte rules to express restrictions on ex parte communications in cable television proceed-